DATED THIS DAY OF

Between

CREDIT INVESTMENT BANK LTD

("BANK")

And

THE INVESTOR(S) NAMED IN SCHEDULE A

("INVESTOR")

Master Investment Agreement

WARNING - THE RETURNS ON THE INVESTOR'S INVESTMENT WILL BE AFFECTED BY THE PERFORMANCE OF THE UNDERLYING ASSET/REFERENCE.

CIB
CREDIT INVESTMENT BANK

TABLE OF CONTENTS

1 DEFINITIONS AND INTERPRETATION 3
2 APPLICATION OF THIS AGREEMENT 5
3 INSTRUCTIONS 5
4 INVESTMENT 6
5 THE INVESTOR'S DUTY TO CHECK CONFIRMATION, STATEMENT OR ADVICE ETC. 7
6 PERIOD OF FUNDRAISING 7
7 PAYMENT 7
8 EARLY REDEMPTION 8
9 EARLY TERMINATION 8
10 WITHHOLDING AND OTHER TAXES 8
11 DEFAULT INTEREST 9
12 REPRESENTATIONS AND WARRANTIES 9
13 UNDERTAKING AND AFFIRMATIVE COVENANTS 10
14 EVENTS OF DEFAULT BY THE INVESTOR 11
15 INDEMNITY 12
16 EXCLUSION OF LIABILITY 12
17 SET-OFF AND THE RIGHT OF CONSOLIDATION 13
18 ASSIGNMENT 13
19 COLLECTION, USE OR DISCLOSURE OF INFORMATION 13
20 PERSONAL INFORMATION 14
21 NO-WAIVER OF RIGHTS 15
22 REMEDIES CUMULATIVE 15
23 SEVERABILITY 15
24 AMENDMENT 15
25 NOTICE AND COMMUNICATION 15
26 GOVERNING LAW AND JURISDICTION 15
27 TRANSLATION 16
28 ANTI-MONEY LAUNDERING, ANTI-TERRORISM FINANCING AND PROCEEDS OF UNLAWFUL ACTIVITIES ACT 2001 .. 16
29 CREDIT REPORTING STANDARDS 17
30 Foreign Account Tax Compliance Act ("FATCA") 17
31 GUIDELINES OF INVESTOR PROTECTION 17
32 JOINT ACCOUNTS / MULTIPLE SIGNATORIES 17
33 COUNTERPARTS 18
SCHEDULE A 20
SCHEDULE B RISK DISCLOSURE STATEMENT FOR INVESTMENTS 21

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MASTER INVESTMENT AGREEMENT

This Master Investment Agreement ("**Agreement**") between Credit Investment Bank Ltd, a company incorporated under the Labuan Companies Act, 1990 with limited liability in the Federal Territory of Labuan and having its Labuan Office at Unit Level 9A(2), Main Tower Office, Financial Park Complex Labuan, 87000 Labuan, Wilayah Persekutuan Labuan, Malaysia, (the "**Bank**", as the context may permit) and the Investor(s) whose name and address are provided in Schedule A (the "**Investor**"), contains the terms and conditions governing the Investment(s) made by the Investor with the Bank from time to time.

1 **DEFINITIONS AND INTERPRETATION**

1.1 In this Agreement, unless the context requires otherwise:

"Agreement"	means, this Master Investment Agreement, and where applicable, shall include the Appendix(es) and Schedule(s) as attached herein.
"Authorised Person"	means, the Investor and any other person authorised by the Investor to give instructions to the Bank, as notified (together with specimen signature) to the Bank from time to time in such manner it may require.
"Business Day"	means: (i) a day, other than Saturday, Sunday or public holiday, on which banks are open for general banking business in the Federal Territory of Labuan, Malaysia and any other jurisdiction specified in the relevant Confirmation; and (ii) in relation to a transfer of cash, (a) a day on which commercial banks and foreign exchange markets settle payments and are open for general business (including dealing in foreign exchange and foreign currency deposits) in the principal financial centre, if any, of the currency of such payment or (b) where such currency is euro, a day on which the Trans-European Automated Real-Time Gross Settlement Express Transfer system (**TARGET2 System**) is open.
"Confirmation"	means, any confirmation issued by the Bank from time to time confirming the terms and conditions of an Investment.
"Disclosure Document"	means, the Risk Disclosure Statement, Product Highlights Sheet, Information Memorandum, Indicative Term Sheet, Pricing Supplement and any other document issued by the Bank to the Investor (to which the Investor has acknowledged receipt) setting out information in respect of the Investment.
"Disruption Event"	means, any event (whether in Malaysia or elsewhere) beyond the reasonable control of the Bank and which disrupts the Bank's normal business operations in relation to an Investment including: (a) any computer or system virus interference, sabotage or any other causes whatsoever which may interfere with any of the Bank's service, or any breakdown or malfunction due to any cause whatsoever, of computer software or equipment whether belonging to the Bank or not, used in connection with any of the Bank's services; (b) imposition or change in laws, rules or regulations, or any acts of government (whether recognised or unrecognised), central bank, monetary authority or other entity in any country relating to, without limitation, exchange controls, restrictions on convertibility, freezes, moratoria, expropriations, requisitions, changes in a country's currency for any reason whatsoever (including monetary union countries), involuntary transfers or distraints of any kind; (c) any storm, fire, riot, strike or other industrial action, communications breakdown, power failure, armed conflict, act of terrorism, any natural or man made disaster, acts of war, acts of terrorism, civil strife, riots or state of political or economic chaos in any country; and (d) any event which causes the Bank's performance under an Investment to become illegal or impractical (including if that it is no longer practical for the Bank to maintain its hedging arrangements).

WARNING - THE RETURNS ON THE INVESTOR'S INVESTMENT WILL BE AFFECTED BY THE PERFORMANCE OF THE UNDERLYING ASSET/REFERENCE.

"Events of Default"	means, any event or circumstance specified under Clause 14.
"Instructions"	means, any instructions given by the Investor or any Authorised Person or any person purporting to be the Investor or any Authorised Person and received by the Bank in such a manner as the Bank may prescribe.
"Investments"	means, the investments made by the Investor with the Bank where the amount of interest/yield payable and/or the amount of principal investment repayable (or any combination) may be calculated in whole or in part by reference to the Reference Value (where applicable) or by reference to the occurrence of a credit event in respect of a reference entity, in which the specific economic terms of each Investment are set out in the relevant Confirmation.
"Investment Documents"	means collectively, this Agreement, the Product Terms, the Confirmation and any other documents evidencing or relating to an Investment entered or to be entered into between the Investor and the Bank and shall where the context so requires, mean any one of them.
"Liabilities"	means all obligations, liabilities or moneys whatsoever at any time now or hereafter owing, due or incurred by the Investor to the Bank in respect of the Investment or in connection with any Instructions or otherwise, whether present or future, actual or contingent, solely or jointly and whether as principal or surety, including all principal moneys, interest, compound, interest, charges, expenses, costs, fees or Taxes as may from time to time be payable by the Investor in connection therewith.
"Mandate"	means, in respect of an Investment, the mandate of the Investor as to the persons who are authorised to give instructions to the Bank in respect of that Investment as notified to the Bank in the application form or such other form from time to time prescribed by the Bank.
"Maturity Date"	means, the date specified in the relevant Confirmation for payment of any amount due under the Investment by the Bank. If such a date is not a Business Day, then the Maturity Date will be the next Business Day, unless such date falls on the next calendar month, in which case, the Maturity Date shall be the last Business Day of the same calendar month.
"Product Terms"	means the specific terms applicable to each Investment as may be supplemented, varied or amended from time to time.
"Reference Value"	means, the relevant market value of the underlying assets including but not limited to currencies, interest rates, shares or a basket of shares, index or the basket of indices or any other assets determined by the Bank to which the Investment is linked.
"Risk Disclosure Statement"	means, the risk disclosure statement set out in Schedule B.

1.2 In this Agreement, unless the context requires otherwise:

(a) the reference of the "Bank", shall where the context so requires, include any of the Bank's employees or agents;

(b) where "the Investor" consists of two or more persons, for joint investors, this Agreement and all other Investment Documents shall be binding on the Investor's respective heirs, estates, executors, successors-in-title, permitted assigns and personal representatives, as the case may be, and the Investor's liabilities hereunder shall be joint and several;

(c) words denoting one gender includes all other genders and words denoting the singular includes the plural and vice versa;

(d) words denoting persons include corporations, and vice versa;

(e) where a word or phrase is given a defined meaning in this Agreement any other part of speech or other grammatical form in respect of such word or phrase has a corresponding meaning;

(f) any reference to a recital, sub-paragraph, paragraph, sub-clause, clause or party is to the relevant recital, subparagraph, paragraph, sub-clause, clause or party of, or to, this Agreement and any reference to this Agreement or any of the provisions hereof includes all amendments and modifications made to this Agreement from time to time in force;

(g) any reference to a statutory provision includes any amendment, modification, consolidation or re-enactment thereof for the time being in force, and all statutory instruments or orders made pursuant thereto;

(h) words denoting an obligation on a party to do any act, matter or thing includes an obligation to procure that it be done and words placing a party under a restriction include an obligation not to permit infringement of the restriction; and

(i) the headings are inserted for convenience only, have no legal effect and shall not affect the construction of this Agreement.

2 **APPLICATION OF THIS AGREEMENT**

2.1 This Agreement, the relevant Product Terms and the Confirmation and addenda (if any) issued by the Bank and all such other agreements and documents as may be entered into by the Bank and the Investor in connection with the Investments shall govern the Investments made by the Investor from time to time pursuant to this Agreement.

2.2 This Agreement, the relevant Product Terms and the Confirmation shall form and be construed as a single agreement made between the Investor and the Bank in relation to an Investment.

3 **INSTRUCTIONS**

3.1 The Bank may but is under no obligation to act in accordance to any Instruction which may be, or purport to be given, whether orally or written by the Investor and/or an Authorised Person.

3.2 The Investor acknowledge and agree that the Bank shall be entitled to rely upon and act on the Investor Instructions, whether oral or written and whether given by telephone, post, facsimile transmission, e-mail or other electronic means. Without prejudice to the generality of the foregoing, the Bank shall be entitled to rely and act on any Instructions based on signatures which appear to the Bank, by reference to the names and signatures of such persons filed with the Bank to be:

(a) the Investor signature; and/or

(b) the signatures of any Authorised Person.

3.3 Without prejudice to the Bank's right, the Bank may act upon any Instructions which the Bank believe in good faith to be given by the Investor and/or the Investor Authorised Person. The Bank shall be under no duty to enquire into the genuineness or authenticity of the Instructions given to the Bank by any of the forms of communication referred to in Clause 3.2, notwithstanding that such Instruction may conflict with other Instruction(s) given by the Investor and/or an Authorised Person to the Bank, or any error, misunderstanding, or lack of clarity in the terms of the Instructions. The Bank shall be indemnified in full against all losses, claims, demands, costs, damages, expenses and all other liabilities whatsoever which it may incur in consequence of the Bank accepting and acting on such Instructions.

3.4 The Investor authorise the Bank to record (by any means) any communications (through any medium) between the Bank and the Investor or any officer, servant or agent of the Investor (including but not limited to any Instructions) using any recording apparatus without prior warning to the Investor and the Investor expressly agree that should a dispute arise at

any time, the relevant recording or a transcript of the same certified as being a true transcript by an officer of the Bank, shall be prima facie and conclusive evidence against the Investor as to the contents of such communication.

3.5 The Bank shall be entitled to refuse to accept or act on any Instruction without notice and/or without disclosing any reason whatsoever if:

(a) it is unable to verify the Investor's and/or an Authorised Person's identity to its satisfaction;

(b) it has any doubts as to the authenticity, clarity or completeness of the Instruction;

(c) the form or content of such Instruction is not in accordance with the requirements, policies or practices prescribed by the Bank from time to time; or

(d) the Instruction involves a breach of any law or requirement of any authority,

and the Bank shall not be liable for any losses, damages, claims, costs or expenses of any nature howsoever incurred by the Investor or any other person in connection thereto or arising as a result of such refusal.

3.6 The Investor acknowledge that the Bank are subject to the obligations of a reporting institution under the Anti-Money Laundering, Anti-Terrorism Financing and Proceeds of Unlawful Activities Act 2001. The Investor shall promptly at the Bank's request provide further verification of any Instructions and the Bank will not be liable for any losses, damages, costs or expenses whatsoever for refusing to act on the Instructions pending receipt of the verification of the Instructions in the manner and form satisfactory to the Bank.

3.7 The Investor acknowledge that the Bank may implement any security procedures and features it deems appropriate and/or necessary from time to time to verify the Investor's identity and/or the identity of an Authorised Person and that an Investment has been authorised by the Investor. Without prejudice to the foregoing, the Bank may require confirmation of any Instructions from the Investor or the Investor's Authorised Person in any form or manner as it deems appropriate.

3.8 The Investor must notify the Bank in writing immediate of any variation of:

(a) an Authorised Person;

(b) the Investor's signature and/or the signature of any Authorised Person;

(c) the authorised manner of signing;

(d) any change of the address or other relevant particulars of the Investor and/or any Authorised Person, including (without limitation) contact particulars of any change of partner (for partnership account) or trustee (for trust accounts).

Such notification shall be accompanied by all necessary documents required by the Bank ("**Supporting Documents**").

3.9 The Bank is entitled to a period of seven (7) Business Days from date of receipt of such notification and Supporting Documents ("**Processing Period**") to process such notification and update the change. During the Processing Period, the Bank is entitled to:

(a) continue to process the Investor's Instructions in accordance with the Mandate and particulars given to it prior to the said notification;

(b) send notices and communications to the Investor at the address in the Bank's records prior to the said notification; or

(c) take such action as the Bank considers appropriate.

3.10 In the event any notification and/or any Supporting Document is ambiguous, incomplete or in such form and substance not satisfactory to the Bank, the Bank reserves the right not to process such notification or to take such action as the Bank deems fit and shall not be liable for any losses, damages, claims, costs or expenses that the Investor or any other person may incur as a result thereof.

4 **INVESTMENT**

4.1 The Bank shall have sole discretion at all times whether to accept or reject any proposed Investment and shall not be bound to give any reasons for rejecting a proposed Investment.

4.2 The Bank may, at its discretion, determine from time to time the acceptable terms including but not limited to minimum investment amount, interest/yield, Maturity Date and other features applicable to the relevant Investment.

4.3 The Bank's obligations in respect of an Investment is subject, at all times, to all laws, rules and regulations (including any requirement to make deduction or withholding in respect of tax), and all standards, codes, guidelines, judgements, orders and directives (whether or not having the force of law), issued by a regulator, authority, Court and/or government agency, and all customs and practices of any market, in each case whether in Malaysia or elsewhere which are applicable to the Bank or any Investment from time to time.

4.4 Each Investment made by the Investor shall be governed by the Investment Documents. In the event of any inconsistencies, the documents will take precedence in the following order:

(a) the Confirmation;

(b) the Product Terms; and

(c) this Agreement.

4.5 The Investor agree that the Bank shall be entitled, without prior disclosure to the Investor, to accept and retain for its own benefit and account any profit, rebate, brokerage, commission, fee, benefit, discount or other advantage of any nature arising out of or in connection with any Investment or the provision of services to the Investor.

5 THE INVESTOR'S DUTY TO CHECK CONFIRMATION, STATEMENT OR ADVICE ETC.

5.1 The Bank will issue a Confirmation to the Investor after each Investment is concluded, and such other statements of an Investment carried out and outstanding in relation to this Agreement from time to time at such intervals as the Bank may deem necessary.

5.2 The Investor are under a duty:

(a) to check all entries in any Confirmation, statement or advice provided by the Bank;

(b) to report promptly to the Bank of any irregularities, discrepancies, inaccurate/incorrect omission, incorrect entries, error or unauthorised transactions or inaccuracies in the contents or entries therein;

(c) to sign and return any Confirmation, statement or advice as the Bank may require; and

(d) to promptly notify the Bank in writing if the Investor do not receive any Confirmation that is due to the Investor.

5.3 The terms specified in each Confirmation shall be deemed to be agreed by the Investor unless the Bank receive a notice in writing from the Investor of any errors within 48 hours of the Investor's receipt of the Confirmation. Each Confirmation is deemed agreed and shall be final, conclusive and be binding on the Investor in the absence of manifest error.

5.4 The Bank may at any time rectify errors or omissions in any Confirmation, statement or advice and any Confirmation, statement or advice so rectified shall be binding on the Investor.

6 PERIOD OF FUNDRAISING

6.1 The Bank shall endeavour to raise and/or obtain funds in order to achieve the fundraising amount targeted within a timeframe decided by the Bank.

6.2 In the event the Bank is able to raise and/or obtain funds up to the fundraising amount targeted prior to the expiry of the period mentioned above, such period of fundraising shall end subject to the confirmation of the Bank.

6.3 In the event the Bank fails to raise and/or obtain funds up to the fundraising amount targeted within the timeframe pursuant to Clause 6.1 above, the Investment made by the Investor shall be returned to the Investor free of interest subject to the terms and the conditions prescribed by the Bank.

6.4 Pursuant to Clause 6.1 and 6.2, in the event the Bank is able to achieve the fundraising amount targeted, the Bank shall undertake, subject to any terms and conditions prescribed and enforce this Agreement.

7 PAYMENT

7.1 The Investor shall pay the principal investment amount in the applicable currency to the Bank on or before the effective date of the Investment as provided in the Confirmation. The Bank is authorised to debit the necessary funds which are to be invested in any Investment made from any account maintained by the Investor with the Bank.

7.2 The Bank shall repay the principal investment amount and/or any interest/yield of an Investment within ten (10) Business Days after the Maturity Date unless otherwise provided in the applicable Product Terms or Confirmation.

7.3 The Investor shall nominate and notify the Bank of an account into any amounts to be paid by the Bank to the Investor under any Investment are to be credited, no later than seven (7) Business Days prior to the Maturity Date, failing which the Bank shall be entitled, without prior notice to the Investor, to make payment to the Investor in such manner as the Bank may determine, including but not limited to crediting such amounts into the Investor's existing accounts with the Bank or issuing a cheque drawn in favour of the Investor for such amounts. Upon such payment, the Bank shall have no further obligations to the Investor in respect of the Investment.

7.4 Except in the event of fraud or manifest error, any statement issued by the Bank as to the amount of repayment in an Investment (including repayment on the Maturity Date or with respect to an Early Redemption or an Early Termination) shall be conclusive and binding on the Investor.

7.5 If required by the Bank, the Investor shall also open and maintain an investment account with the Bank (as the Bank may prescribe) for as long as any Investments are invested or held with the Bank.

8 EARLY REDEMPTION

8.1 Unless otherwise provided in the Confirmation, an Investment may not be redeemed, cancelled or withdrawn prior to the Maturity Date without the Bank's prior approval. The Bank may refuse to give such consent but if the Bank in its sole discretion permits an early redemption, cancellation or withdrawal (such cancellation, withdrawal or redemption being referred to as an "**Early Redemption**"), this will be on such conditions as the Bank may determine, and the Bank will be entitled to deduct all costs, losses, damages, charges and/or expenses (including but without limiting to the unwinding or termination of the Bank's hedging and/or funding position) and such other administrative and other charges as the Bank may determine. Such charges, costs, losses, damages, and/or expenses may result in loss of interest/yield, and in some circumstances, loss on the Investor's initial investment.

8.2 Any Early Redemption of an Investment may be made in whole or in part, subject to the terms and conditions prescribed by the Bank.

9 EARLY TERMINATION

9.1 The Bank may in its sole discretion early terminate an Investment before the Maturity Date ("**Early Termination**") if:

(a) any Event of Default occurs or in the reasonable anticipation of the Bank, is likely to occur; or

(b) any Disruption Event occurs or in the reasonable anticipation of the Bank, is likely to occur.

9.2 The Bank may, in its sole and absolute discretion, postpone repayment which would otherwise occur on the Maturity Date if a Disruption Event actually occurs or (in the reasonable anticipation of the Bank) is likely to occur.

9.3 In calculating the sum payable to the Investor in the event of postponement of repayment or Early Termination, the Bank will factor in any loss, damages, costs, charges and/or expenses referable to such Early Termination, including legal costs on a full indemnity basis, cost of funding and loss or cost incurred as a result of such termination, liquidation or reestablishment of any hedge or related trading position, and may also impose administrative and other charges (collectively, the "**Early Termination Costs**").

9.4 Upon Early Termination, the Investor shall only be entitled to receive an amount equivalent to the principal investment amount less the Early Termination Costs. If the Early Termination Costs exceed the principal investment amount at the time of such Early Termination, the Investor shall be immediately liable for the differential amount.

10 WITHHOLDING AND OTHER TAXES

10.1 Without prejudice to the generality of the other provisions herein, in the event that any taxes ("**Tax**") (which expression shall include any value added tax, sales tax, service tax, business tax, consumption tax, indirect tax or any other tax or levy of a similar nature imposed in any applicable jurisdiction, by whatsoever name called) is now or hereafter chargeable in connection with this Agreement or any Investment, the Investor shall pay such Tax, at such rate(s) as may be prescribed from time to time, in addition to all other sums payable hereunder or relating hereto. If the Bank is required to make payment in respect of such Tax, the Investor agree to indemnify the Bank against the same. The Investor's obligations under this Clause 10 shall survive the settlement of all or any other sums due in respect of the termination or maturity of any Investment.

10.2 All payments made by the Investor to the Bank shall be made without any set-off, restriction or condition and without any deduction for or on account of any counterclaim or any deduction or withholding of or in respect of any form of tax. If the Investor are required by law to make any deduction or withholding from any payment to the Bank in respect of any form of

tax or otherwise, the sum payable by the Investor in respect of which the deduction or withholding is required shall be increased by such amount as shall result in the Bank receiving an amount equal to the amount the Bank should otherwise have received in the absence of such deduction or withholding.

10.3 If:

(a) the Bank is required by:

i. any government agency for revenue authority in any jurisdiction; or

ii. any applicable law in any jurisdiction; or

iii. any contract with any government of tax authority in any jurisdiction,

to deduct or withhold any amount, or otherwise make any payment, on account of any tax or levy whatsoever in any jurisdiction on or in relation to any amount paid, transferred or received (or payable, transferable or receivable) pursuant to this Agreement; or

(b) any liability on account of the same is asserted, imposed, levied or assessed against the Bank, then:

i. the Bank shall be entitled to deduct or withhold the amount which it is required to deduct or withhold or make a payment on account of, or which is asserted, imposed, levied or assessed against it from any payment made by the Bank without any obligation to "gross-up" or pay any additional amounts on account of such deduction or withholding;

ii. the Investor shall, promptly indemnify the Bank on demand against such deduction, withholding, payment or liability (together with any interest, penalty, cost, or expense payable or incurred in connection therewith) if the Bank is required by any applicable law to collect and make payment in receipt of such tax or levy; and

iii. the Bank shall be entitled to apply all or any part of any balance standing to the credit of any of the Investor's account(s) with the Bank in or towards the discharge of any amount payable to the Bank pursuant to this Clause 10.

11 **DEFAULT INTEREST**

11.1 The default interest, if applicable, is as set out in the Product Terms.

12 **REPRESENTATIONS AND WARRANTIES**

12.1 The Investor hereby represent and warrant that (which representations and warranties are deemed to be repeated each time an Investment is made):

(a) the Investor have sufficient knowledge, experience and professional advice to make and have made and will continue to make the Investor's own legal, tax, accounting and other business evaluations on the merits and risks entering into any Investment and the Investor shall be deemed to have made the Investor's own independent decision to enter into each Investment and not to rely on any communication (written or oral) from the Bank or any of its employees or agents as recommendation or investment advice. The Investor are also capable of assuming and assume the financial and other risks of that Investment. The Investor have not received from the Bank or any of its employees or agents any assurance or guarantee as to the expected results of any Investment;

(b) the Investor have full legal power, capacity and authority to make the Investment and to enter into, execute, deliver and perform the Investor's obligations under this Agreement and each Investment and such obligations are valid and binding on the Investor and enforceable in accordance with their respective terms;

(c) all authorisations, consents, licences, approvals or disclosure (whether under any applicable law or otherwise) required for the Investor to enter into and perform the Investor's obligations under this Agreement or to enter into or make any Investment and to give the Bank any instructions that may be given from time to time have been obtained or made and are in full force and effect;

(d) the Investor are not (and will not by making any Investment become) bankrupt or insolvent and no steps are being or have been taken to appoint a trustee in bankruptcy or receiver and manager or conservator or liquidator over the Investor's assets.

(e) the making of the Investment does not violate or conflict with any law or regulation applicable to the Investor including but not limited to:

i. the Labuan Financial Services Authority Act 1996, the Labuan Financial Services and Securities Act 2010 and the Labuan Islamic Financial Services and Securities Act 2010, and the exchange control regulations and notices pursuant thereto;

ii. any provision of the Investor's constitution documents, any order of any court or other governmental agency applicable to the Investor;

iii. any contractual restriction binding on the Investor or affecting the Investor's assets; and

iv. where the Investor are a body corporate, the Investor memorandum and articles of association;

(f) the Investor are the legal and beneficial owner of each Investment and the Investor are making the Investment for the Investor's own account and no other person shall have an interest in the Investment (save for those in favour of the Bank or those which the Bank has approved);

(g) all information supplied by the Investor in connection with this Agreement and each Investment and any suitability assessment conducted are true, complete and accurate in all material respects and shall remain true, complete and accurate;

(h) the Investor have read and fully understood and acknowledged the receipt of the Disclosure Documents by way of signature, if required;

(i) no Event of Default has occurred or which, with the passage of time or the giving of notice, or both, has occurred or is continuing or would occur in consequence of the Investor's entering into this Agreement, an Investment or any Investment Document;

(j) the Investor acknowledge that the Bank may, in its ordinary course of business, be in possession of information in relation to the Reference Value that may not be publicly available. The Bank may be subject to separate obligations of confidentiality in relation to such information. Accordingly, the Investor agree that the Bank has no obligation to disclose any information relating to these Reference Value;

(k) the Investor are acting in relation to this Agreement as a principal and not as an agent for another person;

(l) the Investor acknowledge that the Bank is not acting as a fiduciary for the Investor nor as an advisor to the Investor in respect of any Investment;

(m) there is no pending, or threatened action, suit or legal proceedings (including proceedings involving any tribunal, governmental body, agency or official or arbitration) against the Investor;

(n) the amounts invested herein are funds from legitimate source and are not related in any way directly or indirectly to any unlawful activities criminalised under the Anti-Money Laundering, Anti-Terrorism Financing and Unlawful Proceeds of Activities Act 2001;

(o) the Investor will complete and deliver to the Bank all relevant tax forms as may be necessary under the Investment Documents and/or as the Bank may from time to time request; and

(p) the Investor are aware that the Bank relies on the Investor's representations and warranties herein in entering into the Investment with the Investor.

13 UNDERTAKING AND AFFIRMATIVE COVENANTS

13.1 The Investor undertake:

(a) to ratify and confirm all acts done or caused to be done on the Investor's behalf by virtue of this Agreement and each Investment Document;

(b) if required by the Bank from time to time, to execute, sign, seal and deliver such additional documentation, agreements or deeds in furtherance of the purpose and transactions contemplated by this Agreement and to procure the execution of the same by any third party;

(c) that the Investor will, on the Bank's request send to the Bank a copy of the Investor's constitutional documents, trust deed, declaration of trust or any other documents constituting the trust, partnership deed or partnership agreement and all amendments to such document;

(d) that the Investor will comply in all material aspects with all applicable laws, regulations and order, the non-compliance of which may affect the Investor's ability, authority or capacity to perform the Investor's obligations under this Agreement or under any Investment Documents. In this connection, the Investor undertake to obtain the necessary approvals, authorisations and do the necessary filing in order to validly perform the Investor's obligations under this Agreement and any Investment; and

(e) to forthwith notify the Bank of the occurrence of any Event of Default the occurrence of which or with the passage of time the giving of notice would constitute an Event of Default.

14 **EVENTS OF DEFAULT BY THE INVESTOR**

14.1 The following shall be deemed to be an Event of Default:

(a) the commencement, presentation, filing or institution by petition, application, order for relief or otherwise of any winding up, bankruptcy, insolvency or other analogous event relating to the Investor under any applicable law;

(b) if the Investor are insolvent or unable to pay the Investor's debts as and when they fall due or if the Investor threaten to stop or stop or suspend payment of all or a material part of the Investor's debts, begin negotiations or take such further steps with a view to deferring, rescheduling or re-arranging all or any part of the Investor's indebtedness or make or propose to make a general assignment or composition for the benefit of the Investor's creditors or a moratorium is declared in respect of all or substantially all the Investor's indebtedness;

(c) the appointment of a liquidator, receiver, receiver and manager, administrator, custodian, judicial manager or trustee in respect of part or substantially the whole of the Investor's property, assets or undertaking;

(d) if legal proceedings, suits, administrative proceeding or mediation or arbitration proceedings or actions of any kind whatsoever is instituted or threatened against the Investor;

(e) if the Investor fail to observe any condition or perform any obligation in this Agreement or any Investment Document and such default continues and remains unrectified after 3 Business Days of the Bank's written notice to the Investor to remedy the same;

(f) if the Investor or any of the Investor's subsidiaries is deemed unable to pay its debts within the meaning of subsection 53(9A) of the Labuan Companies Act 1990 or any applicable law to the same effect or becomes unable to pay its debt as when due or suspends or threatened to suspend making payment to any or all of its debts;

(g) if a writ of distress or execution or writ of seizure and sale or attachment of any form of execution or action whatsoever or other similar action is levied or enforced upon or issued against any part of the Investor's property or assets;

(h) all or a substantial part of the Investor's assets are transferred or otherwise disposed of by the Investor or are seized, nationalised, expropriated or compulsorily acquired by any government or agency;

(i) any legal prosecution or administrative proceedings instituted against the Investor which in the Bank's opinion may materially affect the Investor's ability to perform the Investor's obligations under this Agreement or any Investment Documents;

(j) any representation is or turns out to be incorrect or misleading in any material aspect;

(k) an event of default (howsoever described) has occurred under any agreement, debenture, mortgage or instrument which results in any of the Investor's liability or indebtedness becoming or being declared or is capable of being declared due and payable prior to its stated date of payment or if the Investor fail to duly pay any amount under any such arrangement when due or on demand;

(l) there is material adverse change in the Investor's situation which, in the Bank's sole opinion, may affect the Investor's ability to perform the Investor's obligations under this Agreement or any Investment Documents;

(m) if the Investor (for individuals) shall become deceased or incapacitated or serve custodial sentence; and

(n) any law is brought into effect which purports to render ineffective or invalid any provision of this Agreement, or any Investment Documents or which would prevent the Investor from performing any of the Investor's obligations thereunder.

14.2 At any time if an Event of Default has occurred, the Bank may elect, at the Bank's sole discretion, without notice, without giving any reason and without incurring any liability whatsoever, freeze, limit, cancel, suspend and/or declare that the

Investment as terminated. All moneys payable by the Investor, whether actual or contingent, shall become immediately due and payable.

14.3 Without prejudice to any other right or remedy which the Bank may have under this Agreement if an Event of Default shall occur, the Bank shall be authorised in its absolute discretion (but without being bound to do so) to take one or more of the following actions:

(a) satisfy any Liabilities the Investor may have to the Bank from any amount payable to the Investor under any Investment;

(b) cancel any or all outstanding orders or Investment or any other commitments made to or on the Investor's behalf;

(c) retain, postpone or not repay any amount payable by the Bank to the Investor until and unless the Investor have discharged all the Investor's obligations in full;

(d) close out and liquidate all outstanding Investment;

(e) exercise any rights granted by Clause 9 (Early Termination); and

(f) immediately terminate this Agreement.

14.4 After deducting all costs and expenses incurred in connection with any action taken by the Bank arising from an Event of Default including but not limited to any costs arising from any associated hedging transaction or element entered into by the Bank in respect of the Investment placed by the Investor for the purpose of hedging the Bank's exposure, the Bank may apply the principal amount of the investment to the repayment of any sum owing by the Investor to the Bank arising from the making of the Investment, and in the event such principal amount of investment is insufficient to settle all sums owing by the Investor to the Bank, the Investor shall promptly upon demand pay the shortfall of such payment. Notwithstanding any provision herein the Investor shall indemnify and hold the Bank indemnified at all times against any differences or deficiencies arising therefrom together with interest therein and all professional costs (including but not limited to legal fees on a solicitor and client basis) and/or expenses incurred by the Bank in connection with the enforcement of all Investments.

15 **INDEMNITY**

15.1 Without prejudice to any other rights or remedies which the Bank may have against the Investor, the Investor shall on demand fully indemnify and keep indemnified the Bank and hold the Bank harmless from and against all losses, costs, damages, claims, charges and expenses whatsoever, including but not limited to legal costs or expenses on a full indemnity basis and all goods and services, value added and other duties and taxes payable on such costs, charges and expenses, which the Bank may sustain, suffer or incur:

(a) as a consequence of or in connection with the Bank making available to the Investor any Investment from time to time at the Investor's request or otherwise;

(b) in connection with the Bank's enforcement of the Bank's rights under this Agreement or in respect of any Investment and the recovery of any amounts due to the Bank or incurred by the Bank in any legal proceedings for the protection of or in connection with any Investment; and

(c) in connection with any action taken by any third party against the Investor or any of the Investor's Investments or accounts with the Bank.

15.2 The Bank may debit from any of the Investor's accounts with the Bank at the Bank's discretion any amount which the Investor may be required to indemnify the Bank under this Agreement without any prior notice, notwithstanding that such debiting may result in such account(s) being overdrawn. To the fullest extent permitted by law, the indemnity given herein shall not be in any way be prejudiced or affected by the Investor's death, bankruptcy, insanity, legal incapacity, winding-up or reorganization.

16 **EXCLUSION OF LIABILITY**

16.1 Without prejudice to the generality of the other provisions herein, the Bank shall not be liable in any way for any loss, liability, damage, claim, cost or expense suffered or incurred by the Investor or any other person due to any cause whatsoever which is beyond the Bank's reasonable control, including but not limited to the following, except as a result of the Bank's gross negligence, wilful default or fraud:

(a) any Disruption Event;

(b) any delay in transmission, or non-receipt, of notices, Instructions or orders from the Investor (or the Investor's authorized signatories);

(c) any alteration of instructions and/or forgery of the Investor's or any Authorised Person;

(d) any diminution in the value of any funds due to, inter alia, taxes, depreciation or exchange rate fluctuations;

(e) any errors or omissions in any calculations or determinations howsoever arising in relation to an Investment;

(f) any computer or system virus interference, sabotage or any cause whatsoever which may interfere with any of the Bank's services and/or the operation of any of the Investor's accounts, or any breakdown or malfunction due to any cause whatsoever, of computer software or equipment whether belonging to the Bank or not, used in connection with any of the Bank's services and/or the operation of any of the Investor's accounts;

(g) any loss of, destruction to or error in the Bank's records, howsoever caused;

(h) any government order, law, levy, tax or exchange restriction or any changes in the foregoing or any other cause of any kind whether similar to the foregoing or not which may be beyond the Bank's control, whether in Malaysia or in a foreign jurisdiction; and

(i) any acts or omissions of any agents or third parties appointed by the Bank provided that the Bank has exercised reasonable care in the selection of such agents or third parties.

17 **SET-OFF AND THE RIGHT OF CONSOLIDATION**

17.1 The Bank may at its absolute discretion, in addition to and without prejudice to any lien, right of set-off or other right to which it may be entitled, at any time without prior notice or demand to the Investor combine or consolidate all or any of the Investor's account(s) with the Bank in Malaysia or elsewhere and whether held alone or jointly with any other person, or to set-off or transfer any sums of money standing to the credit of such accounts, including any and all funds in the Investor's accounts (including any profit earned on any Investment) with the Bank (whether matured or not) provided that nothing in this Clause 17.1 authorises the Bank to terminate any Investment prior to its Maturity Date towards satisfaction of all the Investor's liabilities whatsoever to the Bank, whether such liabilities be present or future, actual or contingent, primary or collateral, several or joint, whether as principal or surety and notwithstanding that such sums of moneys and such liabilities may not be expressed in the same currency. The Bank is hereby authorised to effect any necessary conversions as it deems fit of one currency into another, at the Bank's rate of exchange then prevailing and the Investor shall indemnify the Bank fully and effectually facilitate against any shortfall, exchange losses, commission or any other liability thereby incurred.

17.2 Where the Bank is presented with a garnishee order and/or mareva injunction and/or injunction(s) and/or similar order from time to time whether in Malaysia or elsewhere issued against the Investor, the Bank shall be entitled to accelerate and mature the repayment of any Investment as if its repayment before maturity was made at the Investor's request.

17.3 The Bank shall not be liable for any losses, damages costs and expenses suffered by the Investor as a result of the Bank's exercise of its rights under this Clause 17.

18 **ASSIGNMENT**

18.1 All Investment cannot be assigned or transferred unless otherwise specifically provided in the Confirmation. The Investor shall not assign or transfer any of the Investor's rights, interests and benefits nor liabilities under any Investment Documents without the Bank's prior written consent.

18.2 This Agreement is binding and ensure to the benefit of the Bank and the Investor and the respective successors in title, permitted transferees and permitted assigns and shall continue to be binding on the Investor notwithstanding:

(a) any change in the name or constitution of the Bank; or

(b) the consolidation or amalgamation of the Bank into any other entity, and in such event such entity shall thereupon substitute the Bank in relation to this Agreement, and this Agreement shall continue in force as between the Investor and such entity.

19 **COLLECTION, USE OR DISCLOSURE OF INFORMATION**

19.1 Except to the extent that the Bank has agreed otherwise in writing, the Investor hereby confirms that the Investor has received, read, understood and consent to the Bank, its officers, employees, agents and advisers collecting, using or disclosing to any of the persons stated below (whether in Malaysia or elsewhere) any information relating to the Investor, including details of any Investment which the Investor have made, for any of the purposes stated below:-

(a) any information relating to the Investor or the Investment to the Central Credit Unit, Bank Negara Malaysia, Association of Banks of Malaysia or such other regulatory or enforcement authority having jurisdiction over the Bank and/or such other authorities as may be authorised by law to obtain such information;

(b) any information relating to the Investor and particulars of the Investor, Authorised Persons and the Investor's Investments, to the Bank, including its head office, branches, representative offices, subsidiaries, affiliates, associate companies (carrying on business in Malaysia or elsewhere) for the purposes of promoting products and services to the Investor, data processing, outsourcing, internal audit, risk management, obtaining of legal advice or to facilitate the Bank's own management of its business;

(c) any information relating to the Investor and particulars of the Investor, the Investor accounts, the Investor's Investments, pursuant to any applicable law (including but not limited to the Personal Data Protection Act 2010, the Labuan Financial Services Authority Act 1996, the Labuan Financial Services and Securities Act 2010 and the Labuan Islamic Financial Services and Securities Act 2010, and the foreign exchange administration regulations and notices pursuant thereto) or pursuant to any order of a court or tribunal or pursuant to any code or guideline not having the force of law but with which the Bank generally complies and to the internal and external auditors and legal and other professional advisors of the Bank;

(d) any actual or potential assignee or transferee, or participant or sub-participant in any of the Bank's rights or obligation herein (or any of their agents or professional advisers); and

(e) any service provider, sales and telemarketing agencies, business partners or third party under conditions of confidentiality imposed on such party, for the purpose of data processing, marketing or promotion of products and services to the Investor, providing any service on the Bank's behalf to the Investor or in connection with such outsourcing arrangements the Bank may have with any third party where the Bank outsourced certain functions to the third party.

19.2 The Investor is responsible for ensuring that the information the Investor provides to the Bank is accurate, complete and not misleading and that such information is kept up to date.

19.3 The Investor acknowledges that if the Investor subsequently withdraws the consent to process the Investor's Personal Data as given earlier to the Bank, as the Bank will not be able to process and/or disclose the Investor's Personal Data in relation to the purposes set out in the Privacy Notice, the Bank will have the right to not provide or discontinue the provision of any product, service, account that is linked to such Personal Data.

19.4 The Bank reserves the right to amend this clause from time to time at the Bank's sole discretion and shall provide prior notification to the Investor in writing and place any such amendments on the Bank's official website or by placing notices at the banking halls or at prominent locations within the Bank's office or by such other means of communication deemed suitable by the Bank.

20 **PERSONAL INFORMATION**

20.1 If the Investor supplies the Bank with personal information about an individual who is an officer, employee, agent, contractor or external adviser of the Investor, the Investor agrees to inform that person that:

(a) the Bank holds personal information about that person;

(b) this personal information has been collected and may be used to enter into any Investment under the Investment Documents and to conduct the Bank's and its affiliates' business operations (such as risk management, systems development and testing, credit scoring, staff training and market or investor satisfaction research) in relation to any Investment;

(c) this personal information may also be used in relation to:

i compliance with any relevant laws and external payment systems;

ii prevention and investigation of any crime or fraud (or suspected crime or fraud);

(d) subject to the Bank's general duty of confidentiality to the Investor, this personal information may be disclosed to the following third party organisations for the following purposes:

i the Bank's affiliates, agents, contractors and external advisers who may be engaged to carry out or assist the Bank in carrying out the Bank's functions and activities in relation to any Investment;

ii regulatory bodies, government agencies and law enforcement bodies and other parties the Bank is authorised or required by law to disclose information to; and

(e) subject to the Personal Data Protection Act 2010, the Investor has the right to access and correct personal information the Bank holds about him or her. The Bank may charge a reasonable fee for this access.

21 **NO-WAIVER OF RIGHTS**

21.1 No failure to exercise and no delay in exercising on the part of the Bank any right, power of privilege under this Agreement and/or any Investment Document shall impair such right, power of privilege or operate as a waiver thereof nor shall any single or partial exercise of such right, power or privilege preclude any other or further exercise thereof or the exercise of any other right, power or privilege.

22 **REMEDIES CUMULATIVE**

22.1 The rights, power, privileges or remedies provided in this Agreement and/or any Investment Document and/or any Confirmation are cumulative and are not exclusive of any rights, power, privileges or remedies provided by law.

23 **SEVERABILITY**

23.1 If at any time any one provision of this Agreement is or becomes invalid, unlawful or unenforceable in any respect under the law of any jurisdiction, neither the validity, legality and enforceability of the remaining provisions of this Agreement nor the validity, legality or enforceability of such provision under the law of any other jurisdiction shall in any way be affected or impaired.

24 **AMENDMENT**

24.1 The Bank may at anytime and at its sole absolute discretion, add, vary, amend or delete the terms and conditions stipulated in this Agreement. The Bank shall provide notice of such amendments or variations by posting the relevant amendment notice on the Bank's official website. Accordingly, the amendments or variations shall be read and construed as if such amendments and variations have been incorporated in and had formed part of this Agreement at the time of execution hereof.

25 **NOTICE AND COMMUNICATION**

25.1 Any notice required to be given shall be in English Language.

25.2 All notices, bank statement, advices, documents and other communications (collectively called "Communication") from or issued by the Bank may be sent to the Investor by hand, post, facsimile, publication on the Bank's website, other electronic transmission, or such other manner as the Bank deems fit. If any Communication is returned undelivered, the Bank will not send the Investor any further Communication until the Investor have updated the Investor's particulars.

25.3 Communications and correspondences shall be deemed to be received by the Investor:

(a) in the case of electronic mail or facsimile or other instantaneous electronic communications, immediately upon transmission by the Bank;

(b) in the case of posted communications, two (2) days after the communication was despatched by the Bank to the Investor's last known mailing address (in the case the Investor have a Malaysia address) or seven (7) days after the communication was despatched by the Bank to the Investor (in the case the Investor have a non-Malaysia address); and

(c) in the case of communications by publication on the Bank's website, the date on which such communications are first published.

Any Communication served personally on or delivered personally to the Investor shall be regarded as received upon service or delivery.

25.4 The Investor shall not hold the Bank liable in the event any Communication is delayed, intercepted, lost and/or fails to reach the Investor during delivery, transmission or dispatch or if the content of such Communication is disclosed to any third party during transit. To the extent permitted by law, the Investor will bear all risk of such Communication.

25.5 The Investor are required to inform the Bank by notice of any change of the address or facsimile number or electronic messaging system details at which Communications are to be given to the Investor.

26 **GOVERNING LAW AND JURISDICTION**

26.1 This Agreement and any non-contractual obligations relating thereto is governed by and construed in all respects in accordance with the laws of Labuan, Malaysia.

26.2 The Investor irrevocably submit to the jurisdiction of the courts of Malaysia. Any proceedings instituted by the Investor against the Bank shall be situated solely and exclusively in Malaysia unless the Bank otherwise agrees in writing.

26.3 The Investor hereby agree that where any actions or proceedings are initiated in Malaysia, the Investor shall submit to the jurisdiction of the Courts of Malaysia. Notwithstanding the aforesaid, the Bank shall have the right to commence and maintain proceedings against the Investor in the courts of any other jurisdiction or to enforce in any jurisdiction whatsoever any security furnished by the Investor to the Bank or its rights under this Agreement.

26.4 Any monies payable and/or due from the Bank under this Agreement is payable only at the office or the branch of the Bank where the Investment is made notwithstanding that the Investment is made (or may be repaid) in a foreign currency.

27 **TRANSLATION**

27.1 The terms and conditions of this Agreement may at the Bank's discretion be translated into a language other than English Language. The Investor agrees that such translation shall only be for its convenience and if there are ambiguities, discrepancies, inconsistencies, conflicts, omissions or differences between the English version and any translation of this Agreement, the English version shall prevail.

28 **ANTI-MONEY LAUNDERING, ANTI-TERRORISM FINANCING AND PROCEEDS OF UNLAWFUL ACTIVITIES ACT 2001**

28.1 The Investor hereby warrant and represent that:

(a) unless and until the Investor notify the Bank to the contrary in writing:

i. the Investor are the principal in relation to the Investment;

ii. no person other than the Investor has or will have any interest in the Investment; and

iii. all monies which will be paid to the Bank shall come from a lawful source of activity and not unlawful activities, as defined/provided under the Anti Money Laundering, Anti-Terrorism Financing and Proceeds of Unlawful Activities Act 2001 ("**AMLA**");

(b) on notification that the Investor are an intermediary for other persons:

i. the Bank may require, and the Investor agree and undertake to provide, verification of the identity of the beneficiary and such other information as the Bank may require, including but not limited to certified true copies of any authorisation to act or documents that may be required for the purposes of verifying the information provided by the Investor, which copies may thereafter be retained by the Bank;

ii. the Investor further declare and certify that the necessary "know-your-client" checks have been conducted including but not limited to the identity, existence, address and nature of the business of the beneficiary, it being confirmed by the Investor that the monies or funds are from a lawful source of activity and not unlawful activity as defined under AMLA; and

iii. it is further hereby clearly agreed and understood that the provision of details of the Investor's beneficiary shall not make the Investor's beneficiary a client of the Bank and the Bank shall be entitled to hold the Investor as the principal;

(c) in addition to Clauses 28.1 (a) and (b) above, the Investor hereby agree and undertake irrevocably and unconditionally that:

i. the Investor shall disclose and furnish to the Bank any information required or deemed necessary and to the satisfaction of the Bank in a timely manner within the period specified by the Bank, whether or not for purposes of complying with laws, rules, regulations, directives and guidelines of and or given made or established by the Bank;

ii. pending receipt of information by the Bank from the Investor and until received and verified thereof to the satisfaction of the Bank and or the relevant authorities, the Bank shall neither be obliged to proceed with any transactions or disbursements nor accept any monies or funds ("Assets"). In relation to Assets already in the possession of the Bank, the Bank shall be entitled (and authorised) to retain the Assets for the time being; any Assets requested to be returned to the Investor shall be returned to the Investor after the Bank receive satisfactory clearance from the relevant authorities;

iii. the Investor will not use the Investment for money laundering or violate any laws relating to money laundering as defined under AMLA; and

(d) in no event shall the Bank or related companies of the Bank be liable for any direct, indirect, consequential or any losses whatsoever or howsoever arising or by reason of the Bank's exercise of their duties under the laws for the time being in force, in particular but not limited to its statutory duties under AMLA.

29 **CREDIT REPORTING STANDARDS**

29.1 The Investor consents to provide the Bank with completed self-certification forms on the Investor's tax residency status and supporting documents including but not limited to the tax residency information of the Investor to fulfil the credit reporting standards for statutory compliance under the Labuan Business Activity Tax Act 1990 and to report such information to the relevant regulatory authorities whether it is local and/foreign where necessary and/or applicable.

30 **Foreign Account Tax Compliance Act ("FATCA")**

30.1 The Investor consents and expressly permits and allows the Bank to comply to the following in the manner and at any time that is deemed fit and proper solely at the Bank's absolute discretion to:

(a) Report its information to the relevant regulatory authorities in accordance with the requirements of the FATCA;

(b) Withhold from the Investor account such amounts in accordance with the requirements of FATCA

(c) Classify the Investor as a recalcitrant account holder or non-participating foreign financial institution ("**NFFI**") and/or suspend or terminate the Investment in the Event that the Investor fails to provide accurate and/or complete information and/or document(s) as the Bank may require.

30.2 In addition, the Investor hereby undertake to provide the Bank with written notice within seven (7) days should there be any change in the information provided to the Bank.

31 **GUIDELINES OF INVESTOR PROTECTION**

31.1 In the event that the Investor suffer monetary loss as a result of a defalcation, or fraudulent misuse of moneys or other property, by a director, officer, employee or representative of the Bank, the Investor may lodge a complaint with the complaints handling unit of the Bank. The Investor hereby acknowledge that the Investor's complaint will only be dealt with by the above channel.

32 **JOINT ACCOUNTS / MULTIPLE SIGNATORIES**

32.1 Where an Investment is made jointly by two or more persons, whether in their own respective capacities or in their capacities as trustees for a beneficiary (each a "**Joint Investor**"), or a Mandate has two or more authorized signatories, the following provisions apply in respect of the joint Investment:

(a) each Joint Investor jointly and severally agrees to the terms of the Investment and shall be jointly and severally liable for all obligations and liabilities incurred on or in respect of such Investment. The liability of each Joint Investor shall not be discharged or affected in any way by the death, incapacity, bankruptcy or liquidation of any other person.

(b) upon the death of any one of the Joint Investors, the Bank shall hold any Investments to the order of the surviving account holder(s) notwithstanding notice to the contrary but subject to applicable law, without prejudice to any right the Bank may have in respect of such balance arising out of any lien, charge, pledge, setoff or any other claim or counter-claim actual or contingent or otherwise or any other action the Bank may deem desirable to commence in view of any claim by any person. The Bank shall not be liable for any demands, claims suits and actions whatsoever by the heirs, executors, administrators and legal representatives of the deceased. Notwithstanding the foregoing the Bank is entitled upon the death of any one of the Joint Investors to suspend or terminate any Investments without notice.

(c) for all matters in connection with, arising from or related to that Investment (including early redemption), the Bank shall be entitled to act on the Mandate as specified.

(d) if, prior to acting on instructions received in accordance with the Mandate, the Bank receives contradictory instructions from another signatory or joint account holder or if the Bank receives ambiguous instructions, the Bank shall be entitled in its absolute discretion to decline to act or immediately thereafter act only on the instructions of all Joint Investors notwithstanding contrary instructions from authorised signatories under the Mandate.

(e) Where a Joint Investor is bankrupt, insolvent, has an adjudication order or a receiving order (or any other proceedings having the similar effect in any applicable jurisdiction) made against it, the Bank has a discretion whether to accept the instructions of the other Joint Investor and if so, to impose conditions for doing so.

(f) The Bank may, without affecting its right to rely on paragraph (c) above, to request for written confirmation from all Joint Investors before effecting any instruction without any liability for any delay or otherwise arising therefrom.

WARNING - THE RETURNS ON THE INVESTOR'S INVESTMENT WILL BE AFFECTED BY THE PERFORMANCE OF THE UNDERLYING ASSET/REFERENCE.

(g) any statement, notice or communication sent by the Bank to any Joint Investor is taken as given to all Joint Investors.

33 **COUNTERPARTS**

33.1 This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF the Parties hereto have signed this Master Investment Agreement on the day and year first above written.

THE BANK

SIGNED by	)	**CREDIT INVESTMENT**
	)	**BANK LTD**
	)	(Company No. LL 16483)
as Attorney(s) for and on behalf of	)	By its Attorney(s)
CREDIT INVESTMENT BANK LTD	)	
(Company No. LL 16483)	)	
	)	
in the presence of:	)	

THE INVESTOR (IF A CORPORATION)

SIGNED by	)
for and on behalf of	)
Company No.:	)
	)
in the presence of:	)

THE INVESTOR (IF ONE OR MORE INDIVIDUALS)

SIGNED by	)
for and on behalf of	)
IC / Passport No.:	)
	)
in the presence of:	)

SIGNED by	)
for and on behalf of	)
IC / Passport No.:	)
	)
in the presence of:	)

WARNING - THE RETURNS ON THE INVESTOR'S INVESTMENT WILL BE AFFECTED BY THE PERFORMANCE OF THE UNDERLYING ASSET/REFERENCE.

SCHEDULE
A

No.	Item	Details
1	**Name of the Investor**	(1) (2)
2	**Investor's Identity Card/ Passport / Corporation's Company Number (where applicable)**	(1) (2)
3	**Investor's Correspondence Address**	

WARNING - THE RETURNS ON THE INVESTOR'S INVESTMENT WILL BE AFFECTED BY THE PERFORMANCE OF THE UNDERLYING ASSET/REFERENCE.

SCHEDULE B RISK DISCLOSURE STATEMENT FOR INVESTMENTS

Unless otherwise stated in this Risk Disclosure Statement, words and expressions defined in the Master Investment Agreement shall have the same meanings when used herein.

Investors who place investments (**"Investments"**) with Credit Investment Bank Ltd (the **"Bank"**) should be aware of the risks which may be involved in doing so. The Investor should not place an Investment with the Bank unless the Investor fully understands:

(a) The nature and fundamentals of the Investments and the products and market underlying such Investments;

(b) The legal terms and conditions of the documentation for such Investments;

(c) the extent of the economic risk to which the Investor are exposed as a result of such Investments (and determine that such risk is suitable for the Investor in light of the Investor's specific experience in relation to the specific transaction and the Investor's financial objectives, circumstances and resources); and

(d) The nature and scope of the relationship between the Investor and the Bank in respect of such Investments.

The objective of this Risk Disclosure Statement is to explain to the Investor, briefly, the nature of the Investments and the risks involved wherever applicable to the relevant Investments prior to the Investor's placement of such Investments.

The Investor should note that additional risks and other significant aspects of placing Investments with the Bank (if any) may be disclosed in the product highlights sheet, information memorandum, term sheet, other risk disclosure statements or other documents relating to each given Investments (**"Other Risk Disclosures"**).

HOWEVER, THIS RISK DISCLOSURE STATEMENT AND THE OTHER RISK DISCLOSURES DO NOT PURPORT TO DISCLOSE OR DISCUSS ALL OF THE RISKS OR OTHER SIGNIFICANT ASPECTS OF PLACING INVESTMENTS WITH THE BANK. THE INVESTOR SHOULD THEREFORE CONSULT WITH THE INVESTOR'S OWN PROFESSIONAL ADVISERS (INCLUDING LEGAL, REGULATORY, TAX, BUSINESS, INVESTMENT, FINANCIAL AND ACCOUNTING ADVISERS AS THE INVESTOR MAY DEEM NECESSARY) BEFORE PLACING ANY INVESTMENTS WITH THE BANK.

IT IS IMPORTANT THAT THE INVESTOR SHOULD FULLY UNDERSTAND AND BE AWARE THAT IT IS SOLELY THE INVESTOR'S RESPONSIBILITY TO (A) MAKE THE INVESTOR'S OWN INDEPENDENT APPRAISAL, EVALUATION AND INVESTIGATION INTO THE MERITS AND RISKS ASSOCIATED WITH THE PLACEMENT OF INVESTMENTS WITH THE BANK (INCLUDING, WITHOUT LIMITATION, OBTAINING ADVICE FROM SUCH PROFESSIONAL ADVISERS AS THE INVESTOR MAY DEEM NECESSARY TO CONSULT) AND (B) ENSURE THAT THE RELEVANT INVESTMENT IS SUITABLE FOR THE INVESTOR'S OPERATIONS, BUSINESS AND ORGANISATION (IF APPLICABLE), AND THE INVESTOR'S PARTICULAR FINANCIAL AND INVESTMENT NEEDS AND OBJECTIVES.

IN VIEW OF THE RISKS ASSOCIATED WITH THE PLACEMENT OF INVESTMENTS, THE INVESTOR MAY WISH TO SEEK ADVICE FROM A FINANCIAL ADVISOR BEFORE MAKING A COMMITMENT TO PLACE AN INVESTMENT WITH THE BANK (IN PARTICULAR, IF THE INVESTOR NEED TO WITHDRAW THE PRINCIPAL AMOUNT PRIOR TO THE MATURITY). IN THE EVENT THAT THE INVESTOR CHOOSE NOT TO SEEK ADVICE FROM A FINANCIAL ADVISOR, THE INVESTOR SHOULD CAREFULLY CONSIDER WHETHER THE INVESTMENT IS SUITABLE FOR THE INVESTOR.

Risk Factors

Unlike traditional deposits, the Investments have an investment element and returns may vary. In considering whether to place any Investments, the Investor should be aware of the following:

1 Contractual Terms and Conditions

It is solely the Investor's responsibility to fully understand the terms and conditions relating to each Investment. The Investor should therefore familiarise itself with the terms and conditions of any agreement, contract or confirmation that the Investor may enter into with the Bank with respect to each Investment. The Investor must fully understand the Investor's rights and obligations under each of such agreement, contract and/or confirmation.

2 Contingent Variable Returns

The Investments are non-traditional investments that may offer returns, among other things, by reference to underlying financial or investment products or other reference instruments, assets, rates, prices or events (such as a single equity or debenture, a basket of equities or debentures, foreign exchange or interest rates, or the occurrence of an underlying credit event). The returns on such Investments are variable and are not guaranteed, and are usually contingent on the performance of one or more relevant underlying financial or investment products or other reference instruments, assets, rates, prices or events.

To the extent that any principal amount or any return on an Investment is stated to be guaranteed, such guarantee will be subject to the relevant terms and conditions governing that particular Investment. The Investor should read and understand all

the relevant terms and conditions of such Investment to determine the Investor's eligibility for such guarantee and the terms under which such guarantee is granted.

3 Liquidity of Investments

An Investment should generally be held for its full tenor and not be prematurely withdrawn or terminated by the Investor. In addition to the risks disclosed in paragraph 5 below, and depending on the specific terms of the relevant Investment, the Investor's premature withdrawal or termination of an Investment may also adversely affect the Investor's returns (if any) thereon. The Investor should therefore ensure that the Investor have sufficient funds and/or the necessary liquidity to enable the Investor to hold each Investments with the Bank until maturity.

In addition, the Investor's right to assign charge, transfer, mortgage or pledge any Investments to a third party may be restricted under the terms and conditions governing the Investment.

4 Potential Losses on The Investor's Early Withdrawal

Be aware of the tenor of each Investment and (if applicable) the fact that the principal amount of an Investment may only be repayable if held to maturity. Unless the Bank otherwise agrees, the principal amount of an Investment cannot be withdrawn, whether partially or in whole, prior to its maturity. If the Bank allows early withdrawal, the Bank shall be entitled to deduct from the principal amount, any loss, costs, charges and/or expenses referable to such early termination as incurred by the Bank (including those in relation to the Bank's unwinding or termination of its hedging and/or funding position) and such other administrative and other charges as the Bank may impose. In such instances, the Investor may receive less than the principal amount.

5 Early Redemption by the Bank

Be aware that certain Investments may be subject to early redemption before maturity by the Bank in accordance with the applicable terms and conditions of such Investments. The Investor should read and understand all the relevant terms and conditions of such Investments to determine the circumstances under which the Bank is entitled to effect such early redemption and the consequences thereof.

6 Past and Future Performance

Any forecast on the economy, stock market, bond market, rates and economic trends of the markets provided to the Investor is not necessarily indicative of the future or likely performance of any Investment. Where any past performance of an Investment, or that of its underlying financial instruments or assets, is provided to the Investor to illustrate possible returns of such Investment, such past performance is also not necessarily indicative of future performance of such Investment.

7 Tax Risks

Before placing any Investment, the Investor should understand the tax implications of doing so, e.g. income tax implications. Different Investments may have different tax implications. The tax implications are dependent upon the nature of the Investor's activities and the transaction in question and may be subject to change in the future.

The Bank does not offer tax advice and any related tax information provided to the Investor by the Bank from time to time should not be relied upon as tax advice or as tax recommendation.

The Investor should, therefore, consult the Investor's tax adviser to ensure that the Investor fully understand the relevant tax considerations.

8 Not Eligible for Deposit Insurance

An Investment is not an insured deposit for the purposes of the Malaysia Deposit Insurance Corporation Act 2011.

9 Credit Risk

The Investments are not secured by any collateral. Even where any principal amount or any return on an Investment is stated to be guaranteed, unless such Investment is insured by Perbadanan Insurans Deposit Malaysia, by investing in such Investment, the Investor will be exposed to the credit risk of the Bank. If the Bank becomes insolvent or defaults on its obligations under the Investment, the Investor can only claim as an unsecured creditor of the Bank. If this occurs, the Investor may suffer a complete loss of the Investor's principal amount and returns (if any).

WARNING - THE RETURNS ON THE INVESTOR'S INVESTMENT WILL BE AFFECTED BY THE PERFORMANCE OF THE UNDERLYING ASSET/REFERENCE.

10 Foreign Exchange Risk

Where an Investment is denominated in a non-local currency, foreign currency exchange rate fluctuations may result in a reduction in returns and/or a loss of principal amount when converted to the Investor's local currency. Additionally, currency exchange controls imposed by the relevant authorities may also adversely affect the applicable exchange rate and result in the receipt of reduced interest or principal and/or otherwise make it impractical or impossible for the Bank to repay the obligation in the denominated currency of the Investment.

Additional Risk Factors in respect of Credit Linked Investments

11 Credit Linked Investments

Credit Linked Investments differ from ordinary Investments in that the amount of principal and/or interest payable by the Bank is dependent on (amongst other things) whether a Credit Event has occurred in respect of the relevant Reference Entity/Entities. It is not necessary for the Bank to suffer any loss in order for an event to constitute a Credit Event. Payments upon redemption (whether at maturity or otherwise) will depend upon, among other things, the credit performance of the relevant Reference Entity/Entities. The occurrence of a Credit Event in relation to the relevant Reference Entity/Entities could result in the loss of all or a substantial portion of the Investor's investment in the Investments.

Examples of Credit Events include Bankruptcy, Failure to Pay, Restructuring, Obligation Acceleration, Obligation Default, Governmental Intervention and Repudiation/Moratorium. Each prospective investor should review carefully the applicable Credit Events and their definitions under each prospective Credit Linked Investment and independently evaluate their appropriateness to his objective for investing in Credit Linked Investments. The likelihood of a Credit Event occurring in respect of any Reference Entity will generally fluctuate with, among other things, the financial condition and other characteristics of such Reference Entity, general economic conditions, the condition of certain financial markets, political events, developments or trends in any particular industry and changes in prevailing interest rates.

There is no guarantee, protection or assurance for investors of the Investments in respect of the credit or performance of the Reference Entity, Reference Obligation or Obligations. None of the Bank, its Directors or any of its affiliates makes any representation as to the future performance of the Investments either in absolute terms or relative to other investments.

Prospective investors should also note that, under the Credit Linked Product ("CLI") Pricing Supplement, the Bank and the Calculation Agent may make certain determinations or calculations and/or exercise certain discretions with respect to Credit Linked Investments and, in doing so, may take into account any details and/or information that it determines relevant. Such determinations or calculations and/or exercise of such discretions may differ from provisions specified in the Confirmation (or the CLI Pricing Supplement) in respect of a Credit Linked Investment and accordingly Credit Linked Investments may perform differently (and potentially may result in a significantly greater loss for investors) than if the provisions specified in the Confirmation had applied.

12 Determination of occurrence of Credit Event

The determination as to whether a Credit Event has occurred will be made on the basis set out in the Investment Documents relating to the Investment and without regard to any related determination by a Reference Entity or any action taken, omitted to be taken or suffered to be taken by any other person including, without limitation, any creditor of a Reference Entity. The occurrence of a Credit Event could result in material losses, including the loss of the entire amount (or a substantial portion) of the original amount invested in the Investments.

13 No proprietary or security interest in any Reference Obligation or claim against any Reference Entity

Investors will have no proprietary interest or security interest in any Reference Obligation and will have no claim against any Reference Entity.

14 Provision of information

None of the Bank or its Directors makes any representation as to the credit quality, business, financial condition, prospects, creditworthiness or status of affairs of any Reference Entity or any Reference Obligation. Any such persons may have acquired, or during the term of the Investments, may acquire, non-public information with respect to any Reference Entity or any Reference Obligation that is or may be material in the context of the Investments. None of such persons is under any obligation to make available any information relating to, or keep under review on the investor's behalf, the credit quality, business, financial condition, prospects, creditworthiness or status of affairs of any Reference Entity or any Reference Obligation or conduct any investigation or due diligence into any Reference Entity or any Reference Obligation.

15 Due diligence by the investor

It is assumed that each prospective investor has made all investigations or due diligence of any Reference Entity and any Reference Obligation, including without limitation, as to the credit quality, business, financial condition, prospects, creditworthiness or status of affairs as he considers necessary or desirable.

16 Interest accrual and payments

Investors should note that, unless otherwise provided in the applicable Confirmation, interest will stop accruing in respect of the Investments on the earlier to occur of (A) the Scheduled Maturity Date, and (B) the Interest Payment Date immediately preceding the Event Determination Date (or, if the Event Determination Date is an Interest Payment Date, such Interest Payment Date). If Accrual of Interest upon Credit Event is specified as applying in the applicable Confirmation, interest will stop accruing in respect of the Investments on the earlier to occur of (A) the Scheduled Maturity Date, and (B) the Event Determination Date.

17 Redemption of the Investments

If an Event Determination Date has not occurred, repayment of the face amount of the Investments will be made by the Bank only upon the Scheduled Maturity Date unless a Maturity Date Extension Event has occurred on or about the Scheduled Maturity Date, in which case, the Investments will be redeemed by the Bank in accordance with Condition 1(h) (*Credit Linked Investments - Maturity Date Extension*).

If an Event Determination Date occurs, the Investments will be redeemed early, and upon redemption:

(a) if Auction Settlement or Cash Settlement is specified as the Settlement Method, redemption proceeds in an amount less than the principal amount of the Investments may be paid to investors in the Investments (and such amount may be zero); or

(b) if Physical Settlement is specified as the Settlement Method, the value of the Deliverable Obligations that may be delivered to investors in the Investments may be less than the principal amount of the Investments (and such value may be zero).

Prospective investors' attention is drawn to the fact that due to the operation of the terms relating to Cash Settlement, Auction Settlement or Physical Settlement (as the case may be) there may be a considerable period of time following an Event Determination Date before the Investments are actually redeemed.

Investors should note that they will not be entitled to receive any further interest or compensation except as set out above.

18 Credit Derivatives Determinations Committees, Credit Derivatives Definitions and adherence to ISDA Protocol

Credit Derivatives Determinations Committees (**Determinations Committees**) are committees established by ISDA which have the power to making binding decisions on critical issues such as whether a Credit Event or a Succession Event has occurred, which obligations of the Reference Entity are deliverable and whether an Auction should take place.

In making any determination, the Determinations Committees owe no duty to any investors in the Investments.

Investors should understand the role of the Determinations Committees and how their determinations may affect the Investments. Further information about the Determinations Committees may be found at https://dc.isda.org/.

There may be differences between the terms and conditions of the Credit Linked Investments and the definitions and provisions of the 2003 ISDA Credit Derivatives Definitions (as supplemented and amended from time to time) or the 2014 ISDA Credit Derivative Definitions. Consequently, investing in Credit Linked Investments is not equivalent to investing in a credit default swap that incorporates the 2003 ISDA Credit Derivatives Definitions or the 2014 ISDA Credit Derivative Definitions.

Prospective investors should note that the credit derivatives market has evolved over time and is expected to continue to change. ISDA may from time to time publish further or alternative documents or protocols that may, without limitation, set out an alternative settlement, valuation method and/or operation or application of determinations made by the Determinations Committees in relation to any Reference Entity.

The Calculation Agent may from time to time amend any provisions of the Investments to incorporate further or alternative documents published by ISDA with respect to the settlement of credit derivative transactions and/or the operation or application of determinations by the Determinations Committees which the Calculation Agent and the Bank determine in a commercially reasonable manner are necessary to reflect market practice for credit derivative transactions. There can be no assurance that changes to such terms will generally be predictable or favourable to the Bank or investors in the Investments.

Prospective investors should also note that the Bank and/or its affiliates may be a member of the relevant Determinations Committees and no assurance can be given as to how the Bank and/or its affiliates will vote in connection with any matter to be determined by the Determinations Committees and the Bank and/or its affiliates are not required to vote in a manner which is consistent with the interests of investors in the Investments and they may vote in a manner which is adverse to the interests of investors in the Investments.

19 Risk of Succession Event

Prospective investors should note that a Reference Entity to which the Investments are referenced may change from time to time as a result of the occurrence of any Succession Events (such as a merger, de-merger or spinoff but which also include any other events that the Calculation Agent determines gives rise to one or more Successors) and that more than one successor Reference Entity may be determined as a result of any such Succession Event. If more than one Successor Reference Entity is determined, the terms and conditions of the Investments will be adjusted, without the Investor's consent, to reflect the fact that there will be multiple Reference Entities. The successor Reference Entity or Reference Entities could also have a different, and worse, credit rating (if any) than the predecessor Reference Entity.

The Calculation Agent is responsible for making determinations as to whether a Successor has been determined and/or whether a Succession Event has occurred. The Calculation Agent is entitled, in its sole and absolute discretion (if the relevant determination has not already been made by the relevant Determinations Committee) to make additional determinations and adjustments to the terms and conditions of the Investments relating to, connected with, or as a result of, a Succession Event. Accordingly, the applicable terms and conditions of the Investments may be amended and restated to reflect the effect of a Succession Event without the Investor's consent.

20 Settlement Method

The ultimate outcome of Credit Linked Investments (following the occurrence of an Event Determination Date) will be affected by the applicable Settlement Method. The Settlement Methods below may apply to the Credit Linked Investments directly or as a fallback settlement method (as specified in the applicable Confirmation).

(1) Auction Settlement

If an Event Determination Date has occurred and Auction Settlement is specified as the Settlement Method in the applicable Confirmation, the Investments will be cash settled by reference to the price of certain deliverable obligations of the Reference Entity determined under an auction conducted in accordance with an auction procedure set out in the relevant Credit Derivatives Auction Settlement Terms, a form of which will be published by ISDA on its website and which may be amended from time to time. Although based on auctions held to date, auctions generally can be expected to be held for a Reference Entity that is widely traded in the credit markets, there can be no assurance that an Auction will be held, or that, if held, the auction will result in the determination of a final price. In such circumstances, the Fallback Settlement Method will apply. It is possible that credit losses determined pursuant to an Auction may be greater or less than the losses which would have been determined in the absence of the Auction. In particular, the auction process may be affected by technical or operational factors or errors which would not otherwise apply or may be subject to actual or attempted manipulations. Auctions may be conducted by ISDA or a relevant third party. If the Bank or its affiliates participates in an Auction, then it will do so without regard to the interest of holders of particular Investments.

(2) Cash settlement

If an Event Determination Date has occurred and Cash Settlement is specified as the Settlement Method or the Fallback Settlement Method, the Calculation Agent or one of the parties may be required to seek quotations for selected obligations of the Reference Entity. Investors should be aware of the possibility that such obligations may no longer exist and no qualifying substitute obligations may have been identified, such quotations may not be available, or the level of such quotations may be substantially reduced as a result of illiquidity in the relevant markets or as a result of factors other than the credit risk of the Reference Entity (for example, liquidity constraints affecting market dealers). Moreover, the market value of a Reference Entity's obligations may be highly volatile in the period following a Credit Event. Accordingly, any quotations so obtained may differ significantly from the value of the relevant obligation. Quotations may be deemed to be zero in the event that no such quotations are available.

(3) Physical settlement

If an Event Determination Date has occurred and Physical Settlement is specified as the Settlement Method or the Fallback Settlement Method, the Bank must select and deliver Deliverable Obligations to the investors in the Investments. The aggregate value of such Deliverable Obligations may be substantially less than the principal amount and interest accrued in respect of the Investments, and may be zero in the worst case scenario. Prospective investors should be aware that physical settlement may not be possible to accomplish under some circumstances, and in such event partial cash settlement will apply.

21 Valuation factors

Factors that may influence the value of a Credit Linked Investment include, without limitation:

(a) the actual or perceived creditworthiness and credit ratings of the Reference Entity/Entities;

(b) the degree of correlation between the creditworthiness of the Reference Entity/Entities and the Bank;

(c) expected rates of recovery on obligations of the Reference Entity/Entities;

(d) actions of a Reference Entity/Entities and its principal creditors;

(e) the nature of each Reference Entity's outstanding indebtedness, including its maturity and subordination structure and any guarantees that the Reference Entity has provided to other entities;

(f) the contractually specified credit-related events with respect to a Reference Entity that may trigger the occurrence of an Event Determination Date;

(g) market liquidity which affects the value of the Credit Linked Investments through its effect on bid-ask spreads and the ability of market participants to hedge exposures;

(h) the time remaining to the maturity of the Credit Linked Investments; and

(i) economic, financial, political and regulatory or judicial events or conditions that affect any Reference Entity or its outstanding obligations, or the market for credit derivative transactions or related financial markets, including credit spreads in the market, market liquidity of credit derivative transactions relative to the liquidity of related cash instruments or related credit derivatives, and liquidity for secondary assignments of credit derivatives generally.

22 Single Name Credit Linked Investments

The Investments are credit-linked to a single Reference Entity, as specified in the applicable Confirmation.

Upon the occurrence of a Credit Event with respect to such Reference Entity, investors may suffer significant losses. Prospective investors should note that equivalent losses may not be suffered by a direct investor in obligations of such Reference Entity.

23 Reference Obligation may be a subordinated obligation

If so specified in the applicable Confirmation, the Reference Obligation specified for the Investments may be a subordinated obligation. A creditor's right to payment under a subordinated obligation is subordinate to a creditor's right to payment under other senior and unsubordinated obligations. Subordinated obligations are less liquid and typically trade at lower values compared to senior and unsubordinated obligations.

24 Sovereign Reference Entity/Entities

There is no common set of rules or practices that governs the manner in which a sovereign government, faced with deterioration in its fiscal position or the performance of its economy, may attempt to reach resolution with holders of its debt obligations. Due to, among other factors, the role of governments and international organizations as creditors, the ability of a sovereign to enact legislation that may affect holders of its debt obligations, and the role played by other governments, including those of the jurisdictions in which private creditors are located, the development of events is inherently unpredictable. Accordingly, in respect of Sovereign Reference Entity/Entities, the circumstances that may lead to the occurrence of an Event Determination Date is particularly uncertain.

Certain conditions applicable to Credit Linked Investments operate differently in the case of Sovereign Reference Entities. In particular, the obligations that are deliverable following a Restructuring may be determined based on characteristics of the obligation on the date immediately preceding the effective date of the restructuring. Additionally, events such as an annexation, unification, secession, partition, dissolution, consolidation, reconstitution or other events that result in any direct or indirect successor(s) may constitute Succession Events, and the Reference Entity may change, irrespective of whether any successor assumes the obligations of the predecessor Sovereign Reference Entity. Under the trading conventions applicable to many credit derivatives transactions with respect to Sovereign Reference Entities, long-tenor obligations may be deliverable following a Restructuring. As a result, it is possible that there will be a wide dispersion in values among Deliverable Obligations, and interest rates and the maturity structure of the Sovereign Reference Entity's deliverable obligations will be an important factor in determining the payment due on redemption upon the occurrence of an Event Determination Date.

25 The occurrence of certain events prior to the Trade Date may affect the value of the Investments

Unless "Credit Event Backstop Date" is not specified as being applicable in the applicable Confirmation, prospective investors should note that, despite the fact that interest accrues on the Investments only from the Interest Commencement Date, the exposure to the risks of the Reference Entity includes exposure in the period from and including the Credit Event Backstop Date in respect of the Reference Entity (which may occur up to 60 calendar days prior to the Trade Date) to the Effective Date and

therefore the principal payable in respect of the Investments may be reduced as a result of the occurrence of an Event Determination Date notwithstanding that the relevant Credit Event occurred prior to the Effective Date of the Investments and that no interest was paid under the Investments in respect of the period prior to the Interest Commencement Date. Prospective investors should be aware that such an occurrence shall not discharge them from their obligation to purchase the Investments on or around the Effective Date. Similarly, for Succession Events the look-back period is 90 calendar days and it is therefore possible that the Investments could be affected by a Succession Event that took place prior to the Trade Date.

26 Foreign Exchange Rate Risk

Prospective investors should note that they may be exposed to exchange rate risks if the Reference Obligation and/or other Deliverable Obligations of the Reference Entity are denominated in a currency other than the Base Currency in respect of the Investments or if the Investments are redeemed by delivery of securities denominated in a currency other than the Base Currency (such other currency being, the **Other Currency**). This is because, in the event that an Event Determination Date occurs, underlying amounts by reference to which the Credit Event Redemption Amount, Auction Credit Event Redemption Amount or the Asset Amount (as applicable) will be determined will be denominated in the Other Currency and any associated foreign exchange costs or losses (as determined by the Calculation Agent) incurred by the Bank in connection with the redemption of the Investments will form part of the Hedging Costs to be deducted from the Credit Event Redemption Amount, Auction Credit Event Redemption Amount or the Asset Amount (as applicable and, in the case of the Asset Amount, only if Hedging Costs are to be specified as applying in the applicable Confirmation). Prospective investors should note they may be exposed to exchange rate risks if the applicable Confirmations provides that the amount of principal and/or interest payable by the Bank will be calculated in a non-deliverable currency and converted into the Base Currency of the Investments at a rate pre-determined as at the Trade Date. The relevant actual exchange rate may fluctuate as a result of market and political conditions and economic factors, and may go up as well as down. Historical or prevailing rates of exchange of the nondeliverable currency to the Base Currency should not be taken as an indication of the future exchange rate. No assurance can be given that the non-deliverable currency will not depreciate as against the Base Currency, thereby reducing the amount of any payment in the Base Currency due to under the Investments. Where the Investor has converted amounts from another currency into the Base Currency in order to make the investment in the Investments, he should bear in mind the risk of exchange rate fluctuations that may cause a loss on conversion of the Base Currency back into such other currency.

27 Restructuring

If Restructuring is specified as a Credit Event in the applicable Confirmation, in addition to being exposed to the risk of other specified Credit Events, the Investors will be exposed to the risk that certain obligations of the Reference Entity/Entities are subject to a restructuring in accordance with their terms. If a Restructuring Credit Event occurs with respect to a Reference Entity, then (unless otherwise specified) the Bank may deliver multiple Credit Event Notices with respect to the Reference Entity to which the Credit Event applies, each such Credit Event Notice setting forth the amount of the aggregate nominal amount of the Investments to which the Credit Event Notice relates (the **Exercise Amount**). Where a Credit Event notice is delivered with an Exercise Amount that is less than the aggregate nominal amount of Investments outstanding, the terms of the Investments shall be deemed to apply to a principal amount of the Investments equal to the Exercise Amount only and the Investments will be redeemed pro rata in an amount equal to the Exercise Amount only, with the balance of the principal amount of the Investments remaining outstanding. Following the occurrence of a Restructuring, the relevant Determinations Committee may establish separate maturity buckets (each, a **Maturity Bucket**) in connection with the settlement of credit derivative transactions. Each Maturity Bucket will relate to transactions with a separate maturity period ending a specified number of years following the Restructuring Date. The relevant Determinations Committee will determine, with respect to each Maturity Bucket, whether an Auction will be held to settle transactions assigned to such Maturity Bucket. Prospective investors should note, therefore, that separate Auctions may be held in respect of each Maturity Bucket. In these circumstances, the terms of the Investments for which Auction Settlement is specified as the Settlement Method provide that the Calculation Agent will determine which Auction is the Applicable Auction with respect to the Investments.

In connection with the foregoing, investors should also be aware that, unless the Movement Option is specified as not being applicable under the applicable Confirmation, in certain circumstances, if following a Restructuring Credit Event a No Auction Announcement Date has occurred pursuant to sub-paragraph (b) of the definition of that term, the Bank will have the option to elect in good faith that a Parallel Auction and a set of Parallel Auction Settlement Terms shall be deemed applicable to the Investments, and Auction Settlement in respect of the Credit Event. This option is known as the Bank's Movement Option.

For these purposes, the Bank can take into account the terms of the relevant Parallel Auction Settlement Terms, the permissible deliverable obligations thereunder, the Deliverable Obligations under the Investments and any hedging transaction that the Bank has or may enter into in connection with the Investments. If the Bank elects to exercise its Movement Option, such exercise will affect the determination of the Auction Final Price. If the Bank elects not to exercise its Movement Option, the Investments will be redeemed in accordance with the Fallback Settlement Method.

Prospective investors should be aware that the decision of the Bank to exercise or not to exercise such option will be made without reference to the interests of investors in the Investments and that the decision made may result in investors in the Investments recovering less in respect of the Investments then would have been the case had an alternative decision been made.

28 Potential and Actual Conflicts of Interest

The Bank plays a variety of roles in relation to the Investments, including acting as issuer of the Investments and Calculation Agent and hedging its obligations under the Investments. The Bank and/or its subsidiaries and affiliates may also enter into, adjust and unwind transactions relating to the relevant Reference Obligations, securities of any Reference Entity or credit risk of any Reference Entity, whether for its or their proprietary accounts or for accounts under management or to facilitate transactions on behalf of customers or otherwise. In addition, the Bank and its subsidiaries and affiliates may accept deposits from, make loans or otherwise extend credit to, and generally engage in any kind of commercial or investment banking or other business with, any Reference Entity or any affiliate of a Reference Entity or any other person or entity having obligations relating to a Reference Entity and may act with respect to such business in the same manner as if the Investments did not exist, regardless of whether any such action might have an adverse effect on a Reference Entity or the position of an investor or otherwise (including, without limitation, any action which might constitute or give rise to a Credit Event). The economic interests of the Bank and/or its subsidiaries and affiliates in each such capacity may, therefore, be opposed to the interests of investors in the Investments and potential and actual conflicts of interests may arise from such activities and from the different roles played by the Bank and its subsidiaries and affiliates in relation to the Investments. None of the Bank, its subsidiaries or affiliates is required to resolve such conflicts of interest in favour of the Investor and each may pursue actions and take such steps that it deems necessary or appropriate to protect its interests without regard to the consequences for any investor.

29 Discretion of the Bank and Calculation Agent

The Bank and the Calculation Agent are given broad powers of discretion in respect of Credit Linked Investments (including without limitation the selection of Dealers to obtain quotations or making adjustments). In exercising any such discretions or making any determinations, the Bank and the Calculation Agent are bound to act in good faith, save where expressly provided otherwise in the Conditions.

Investor's Acknowledgment

I/We, _____ hereby acknowledge receipt of the Risk Disclosure Statement and acknowledge that we have read and fully understood the various risks applicable to and/or associated with the Investment.

_____

(Authorised signatory)

WARNING - THE RETURNS ON THE INVESTOR'S INVESTMENT WILL BE AFFECTED BY THE PERFORMANCE OF THE UNDERLYING ASSET/REFERENCE.